

2. 9:00 AM CASE NUMBER: C22-01214
CASE NAME: GABRIELA BENSON BODDEN VS. VIKTORIYA VOLZHENINA
HEARING ON ORDER OF EXAMINATION IN RE: AS TO VIKTORIYA VOLZHENINA APPLICATION AND
ORDER FOR EXAMINATION FILED BY GABRIELA BENSON BODDEN
FILED BY:

TENTATIVE RULING:

Both Parties / Counsel are ordered to appear for the hearing on Defendant Volzhenina's Motion to Set Aside Default, See Line 3 below. This order for examination shall trail the hearing on the Motion.

Law & Motion

3. 9:00 AM CASE NUMBER: C22-01214
CASE NAME: GABRIELA BENSON BODDEN VS. VIKTORIYA VOLZHENINA
HEARING IN RE: MOTION TO SET ASIDE DEFAULT JUDGMENT
FILED BY:

TENTATIVE RULING:

Defendant Viktoriya Volzhenina's motion to set aside the default and default judgment is **granted**, and her motion to quash service of summons and complaint is **granted**. The default entered on or about December 26, 2023 is set aside, the default judgment entered on May 22, 2025 is vacated, and service of the summons and First Amended Complaint on or about September 24, 2024 is quashed.

Background

This action arises from a landlord-tenant dispute brought by Plaintiffs Gabriela Benson Bodden and Jerlin Veliz Carcamo against Defendant Viktoriya Volzhenina, doing business as Bay Team Realty. Plaintiffs filed the complaint on June 14, 2022, alleging habitability violations, nuisance, retaliation, and related statutory claims concerning a rental property in Richmond, California. Defendant did not appear, and on Plaintiffs' application, the Court entered default judgment on May 22, 2025, awarding Plaintiffs \$1,510,283.12.

After filing the action, Plaintiffs attempted personal service on Defendant at an address identified by a private investigator as Defendant's residence at 575 Eddy Street, Apartment 208, San Francisco. Those attempts occurred in December 2022 and July 2023. Plaintiffs thereafter attempted substituted service at Defendant's workplace, the Judicial Council building located at 455 Golden Gate Avenue, San Francisco.

Defendant did not appear, default was entered, and default judgment followed in May 2025.

Defendant now moves to set aside the default and default judgment under CCP sections 473(d) and 473.5, asserting that the judgment is void due to defective service or, alternatively, that she lacked actual notice of the action in time to defend. Defendant contends that she was working remotely for the Judicial Council pursuant to a COVID-19 Remote Work Policy and had not been physically present at the 455 Golden Gate Avenue building for several years. On that basis, Defendant argues that the Judicial Council address was not her "usual place of business." Defendant further argues that substituted service on an unidentified "Secretary" in a large, multi-agency building does not comply

with CCP section 415.20(b), and Plaintiffs' process-server's declaration is unreliable because it contains factual impossibilities, including attempted service on weekends when the building was closed. Defendant states she first became aware of the lawsuit and the judgment on August 15, 2025, while reviewing court records in another matter.

Plaintiffs oppose the motion, asserting that the Judicial Council address is Defendant's workplace, that Defendant received mail there, and that the motion should be denied for lack of proper service. Plaintiffs further argue that Defendant's claim of lack of notice is undermined by her conduct, including recording grant deeds transferring real property within one day of entry of the default judgment and using inconsistent or nonfunctional addresses in other court filings.

In reply, Defendant reiterates that Plaintiffs have not met their burden to establish valid service after personal jurisdiction was challenged. Defendant further argues that accusations regarding property transfers and address inconsistencies are irrelevant to the service issues. Finally, Defendant asserts that Plaintiffs' opposition papers were served by UPS delivery to a post office box and by email without consent and argues that these methods were defective.

Standards

Set Aside Default

Under CCP section 473, subdivision (d), the court may set aside a default judgment which is valid on its face, but void, as a matter of law, due to improper service." (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.) "When a court lacks jurisdiction in a fundamental sense, an ensuing judgment is void, and thus vulnerable to direct or collateral attack at any time." (*Strathvale Holdings v. E.B.H.* (2005) 126 Cal.App.4th 1241, 1249.)

Courts may set aside default or default judgment pursuant to CCP section 473.5 for lack of actual notice. "The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered." (CCP section 473.5.)

Quash Service

"A defendant . . . may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her. . . ." (Code Civ. Proc., § 418.10(a).) The motion must be filed on or before the last day on which the defendant must plead or within any further time that the court may for good cause allow. (*Id.*)

"[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]" (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1444.) "[T]he filing of a proof of service creates a rebuttable presumption that the service was proper" but only if it "complies with the statutory requirements regarding such proofs." (*Id.* at 1441-1442.) When a defendant moves to quash service of the summons and complaint, the plaintiff has "the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service." (*Coulston v. Cooper* (1966) 245 Cal.App.2d 866, 868.) "A court lacks jurisdiction over a party if there has not been proper service of process." (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808.)

CCP section 415.20 provides that "[i]f a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served . . . a summons may be served by leaving

a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business . . . in the presence of a competent member of the household . . . at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail" (CCP section 415.20(b).)

Discussion

Defendant seeks to set aside the default entered against her and to quash service of summons, moving pursuant to CCP sections 473(d), 473.5, and 418.10.

Plaintiffs' process server Ameer Aziz declares that he effected substituted service on Defendant at 455 Golden Gate Avenue, San Francisco, on September 24, 2024, at approximately 12:30 p.m., by leaving the summons, First Amended Complaint, and related documents with an adult individual working at the receptionist desk who identified himself as "John Swintertown," and thereafter mailing the documents to Defendant at the Golden Gate Ave address. The process server states that the location was the Judicial Council of California office and that he was told it was Defendant's place of employment. (Declaration of Ameer Aziz filed 12/4/25 ¶¶ 3, 10.)

The process server declares that he made multiple unsuccessful attempts to personally serve Defendant at 455 Golden Gate Ave.: June 25, 2024 (fifth-floor office; no one available); June 29, 2024 (directed by posted signage to another floor; receptionist refused); July 9, 2024 ("Marcus," fifth-floor supervisor; declined to accept service except for the Judicial Council Board); and August 17, 2024 (front desk receptionist again refused). (*Id.*, ¶¶ 5–9; and see 9/27/24 Declaration of Diligence and 11/25/24 Amended Proof of Service of Summons and First Amended Complaint.)

A "proper place" to attempt personal service may be a defendant's usual place of business. (*Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750.) In this case, Plaintiffs submit evidence of attempted personal service of the complaint at an address identified by a private investigator as Defendant's residence at 575 Eddy Street. However, they do not contend that those attempts satisfied the personal-service prerequisite for substituted service of the First Amended Complaint. Instead, they rely on alleged attempts to personally serve Defendant at the Golden Gate Avenue address before resorting to substituted service at that location. (See 9/27/24 Declaration of Diligence of Ameer Aziz.) Accordingly, the Court considers only the alleged personal-service attempts at the Golden Gate Avenue address in evaluating whether substituted service of the First Amended Complaint was proper.

To effect substituted service on an individual, a plaintiff must demonstrate that personal service could not be accomplished with reasonable diligence. (CCP § 415.20(b).) "Reasonable diligence" requires a thorough, systematic investigation and inquiry conducted in good faith by the party or the party's agent. (*Watts v. Crawford* (1995) 10 Cal.App.4th 743, 749.)

On this record, Plaintiffs have not established that service was proper.

First, Plaintiffs' initial process server, Dimitrius Forakis, stated in a declaration attached to a proof of service of the original complaint filed December 14, 2022, that on November 20, 2022, a secretary at the Golden Gate Avenue address advised him that Defendant was employed there but was working from home. Once the process server was told that Defendant was working remotely and was not physically present at that location, Plaintiffs were required to attempt service at another location. Repeated attempts to effect personal service at the Golden Gate Avenue address after learning Defendant was not physically present do not constitute reasonable diligence. (See *Espindola v. Nunez* (1988) 199 Cal. App. 3d 1389, 1392 [efforts should be reasonably calculated to provide the defendant

with actual notice of the action].)

Second, the record does not reflect any attempt to personally locate or request Defendant at the Golden Gate Avenue address. The attempts described consist of efforts to leave the documents with front-desk or reception personnel.

Third, as Defendant points out, the proof of service and declaration of diligence contain internal inconsistencies that undermine their reliability. These include purported service attempts on dates when the Golden Gate Avenue building was closed to the public, multiple attempts occurring on the same day of the week, the failure to consistently identify floor numbers or the agency within a multi-agency building; and references to individuals or job titles that Defendant asserts do not exist at that location. Nothing in the declaration of Ameer Aziz filed December 4, 2025 resolves these discrepancies, including Defendant's assertion that the Golden Gate Avenue building is not accessible on the weekend. Accordingly, the proof of service and declaration of diligence do not support a finding that substituted service was valid.

On this record, Plaintiffs have not carried their burden to establish valid service. In light of this conclusion, the Court does not reach Defendant's remaining arguments, including whether the Judicial Council constituted Defendant's usual place of business while she worked remotely or whether relief is available under CCP section 473.5.

Defendant submits the motion to quash service of summons as the proposed responsive pleading in support of her motion to set aside the default and default judgment. (CCP § 473.5, subd. (b).) Because Defendant's motion to set aside and motion to quash are both predicated on the same asserted lack of personal jurisdiction, the court sees no reason to defer consideration of the motion to quash.

Service Under CCP §§ 415.30 and 415.50

Defendant states that she would have "reviewed [a proposed stipulation] and responded promptly" had one been received. The record reflects that the proposed stipulation was attached to Plaintiff's opposition papers, but no agreement followed.

Under CCP section 415.30, a plaintiff may serve a defendant by notice and acknowledgment of receipt. If the defendant fails to sign and return the acknowledgment within 20 days after it is mailed, the defendant becomes liable for the reasonable costs incurred by the plaintiff in effecting service by another authorized method, absent a showing of good cause. (CCP § 415.30, subd. (d).)

CCP section 415.50 separately authorizes service by publication upon a showing, by affidavit, that the defendant cannot with reasonable diligence be served by another method specified in Article 3 of the Code and that a cause of action exists against the defendant. (CCP § 415.50, subd. (a).)

Defendant's address of record is P.O. Box 23502, Oakland, California 94623. Defendant states in a declaration filed on December 8, 2025, that she regularly checks this address. (Volzhenina Reply Decl., ¶ 9.) Nothing in this order limits Plaintiffs' discretion to select any method of service authorized by statute. If Plaintiff elects to serve Defendant by notice and acknowledgment of receipt and the acknowledgment is not returned, the court will entertain an application for recovery of service costs pursuant to CCP section 415.30(d). Plaintiff may also seek leave to effect service by publication upon a proper showing.

Service of Documents

The court notes the parties' competing accusations regarding service of documents. The court admonishes all parties that all future service must comply with the CCP and the applicable rules of court.

Disposition

The motions are granted. The default entered on or about December 26, 2023 is set aside, the default judgment entered on May 22, 2025 is vacated, and service of the summons and First Amended Complaint on or about September 24, 2024 is quashed.

4. 9:00 AM CASE NUMBER: C22-01911
CASE NAME: TYSHAUN BUTLER VS. HYATT HOTELS CORPORATION
***HEARING ON MOTION IN RE: TERMINATING SANCTIONS**
FILED BY: HYATT HOTELS CORPORATION
TENTATIVE RULING:

Summary

Defendant Hyatt Hotels Corporation's Motion for Terminating Sanctions is **granted** as set forth below.

Background

Plaintiff Tyshaun Butler initiated this action on September 9, 2022, alleging personal injury resulting from a bedbug incident at Defendant's hotel property located at 2611 Contra Costa Blvd., Pleasant Hill, California. Defendant served discovery upon Plaintiff in the form of Form Interrogatories, Set One. Pursuant to a Court Order dated May 14, 2025, Plaintiff failed to provide verified responses to said discovery.

On September 15, 2025, Defendant Hyatt Hotels Corporation filed its Motion for Terminating Sanctions, pursuant to Cal. Code of Civil Procedure § 2023.030 ("Motion") The Motion is supported by a Notice of Motion, an Amended Notice filed September 19, 2025, a Memorandum of Points and Authorities, a Declaration of Counsel of Monica Castillo, and a proposed order. The grounds for the motion are Plaintiff's failure to serve a verified response to the discovery propounded by Defendant. The Motion is not opposed by Plaintiff Tyshaun Butler.

Analysis

A. Plaintiff's Status as a Self-Represented Litigant

The Court is cognizant that Plaintiff is proceeding in *propria persona*. However, the law is clear that a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Consequently, self-represented litigants, like their represented counterparts, are bound by the procedural rules governing civil litigation. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 (stating that "mere self-representation is not a ground for exceptionally lenient treatment" and procedural rules apply equally); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121